भारतीय गैर न्यायिक

एक सौ रुपये

Rs. 100

रु. 100

ONE HUNDRED RUPEES

सत्यमेव जयते

भारत INDIA

INDIA NON JUDICIAL

தமிழ்நாடு तमिलनाडु TAMILNADU

016584

V. Prabu
Chennai

AZ 695579

1.9 AUG 2015

S. RAVI
STAMP VENDOR
36, Mannar Reddy Street,
L.No:C4/4307/77 Ch-17

DEED OF DECLARATION OF TRUST

THIS DEED OF TRUST executed at CHENNAI on 20th Day of August 2015, by V. PRABU, aged about 30 years, son of Mr. R. VAITHILINGAM, residing at No T-64A, Valluvar Street, Thirunagar, Jafferkhanpet, Chennai – 600 083, Tamil Nadu hereinafter called the AUTHOR OF THE TRUST.

The Author and Founder of the Trust, Mr. V. PRABU hereby appoints:

1. Mr. V. ANANDA PRABU, aged about 26 years, son of Mr. R. Vaithilingam, residing at No. 3/333, South Street, Thelunkankudikadu, Orathanadu Taluk, Thanjavur – 614625.
2. Mr. V. SHANMUGA PRABU, aged about 23 years, son of Mr. R. Vaithilingam, residing at No3/335, Sethirayan Street, Thelungankudikadu, Orathanadu Taluk, Thanjavur – 614625.
3. Mrs P. BRINDA, aged about 27 years, wife of Mr. V. Prabu, residing at No. 3/333, South Street, Thelunkankudikadu, Orathanadu Taluk, Thanjavur – 614625.

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V. Prabu

For M.R. EDUCATIONAL AND SOCIAL TRUST

Chairman

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தமிழ்நாடு तमिलनाडु TAMILNADU

V. Prabu
Chennai

AZ 695581

016586
19 AUG 2015

S. RAVI
STAMP VENDOR
36, Mannar Reddy Street,
L.No:C4/4307/77 Ch-17

This Trust shall be NON-PROFITABLE CHARITABLE TRUST.

WHEREAS the Author has set apart a sum of **Rs. 10,000/- (Rupees Ten Thousand only)** for **M.R. EDUCATIONAL AND SOCIAL TRUST** to serve as the nucleus for the Corpus of the Trust Fund for carrying out the objects of the Trust.

NOW THIS DEED OF TRUST WITNESSETH AS FOLLOWS.

1. **V. PRABU** shall be the **MANAGING TRUSTEE** and shall hold Office for his life time.
2. The author hereby create a Trust Called **M.R. EDUCATIONAL AND SOCIAL TRUST**
3. The registered Office of the Trust shall be at No. 20, 1st Floor, 10th Avenue, Ashok Nagar, Chennai – 600 083, Tamil Nadu.
4. **OBJECTS OF THE TRUST**
   a. To establish Primary and Secondary Schools, Colleges and other related activities.

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V Prabu

For M.R. EDUCATIONAL AND SOCIAL TRUST

Chairman

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b. To impart education to one and all in various disciplines and for this purpose establish educational institution and/or assist in the running of existing educational institutions and grant scholarship to deserving students.

c. To promote the knowledge of education, culture, body, mind and soul, and of all kinds and for this purpose establish Nursery, Primary, Secondary and Higher Secondary Schools, Schools and institutions for Special needy and physically challenged people, Teacher's, Training Institutes, Colleges, Industrial Training Institutes, Polytechnic and Engineering colleges, Institutes of higher education, for the benefit of the Public which are not to be run or managed for profit

d. To help talented needy youngsters with their education and employment

e. To establish, promote, set-up, run, maintain, assist, finance and to help in the setting up, maintaining and running old age homes, hospitals, rural health centers, ladies & men's hostels, sports center, etc.

f. To establish and contribute to educational and cultural institutions, Colleges, Schools, Libraries, Reading Rooms, etc.

g. To implement awareness programmes and Rural Development Programmes.

h. To give, provide and render help and assistance to implement any scheme for providing livelihood and upliftment of the poor.

i. To extend financial assistance to the extent possible to the financially poor students who are unable to continue their studies in the schools, institutions, and colleges so that they can pursue their education.

j. To establish, manage, organize, build, grow, function, and operate the Trust in the most transparent, socially responsible and fully accountable manner to the patrons and society at large.

k. To establish and support old age homes to take care of the needy, destitute, elderly people.

l. To support homes for mentally retarded, physically challenged children or people.

m. To help and provide assistances to the people affected by natural calamities and manmade disasters

n. To give, provide and render help and assist, to implement any scheme for providing livelihood and up-liftment of the poor.

V. Pathu

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For M.R. EDUCATIONAL AND SOCIAL TRUST

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o. To apply for all kinds of grants, benefits, assistance, concessions, privileges, recognitions, approvals, provided by and through the state and central governments, private and public, institutions, organisations, international organisations, Tamil Nadu State Social Welfare Board and Central Social Welfare Board.

p. To acquire movable, immovable properties by purchase, lease, hire, exchange or otherwise and to build, erect, construct, alter, modify and maintain buildings for carrying out the activities of the Trust.

q. To give, provide and render help and assistance to implement any scheme for providing livelihood and upliftment for the poor.

r. To provide food, medicine and other help and assistance of any shape or form to the poor deserving and needy persons.

s. To arrange for Blood and Eye donations and other relevant programmes.

t. To offer assistance and help to Charitable or Educational Trusts with similar objectives.

u. To undertake any such other activities as may be necessary for the promotion of the objects of the Trust. For the removal of doubts, it is hereby declared that all the objects of the Trust will be carried out without any motive of profit.

5. <u>POWER OF THE MANAGING TRUSTEE</u>

a) The Managing Trustee shall have power to accept donations either in cash or in kind, immovable properties either with or without any special conditions.

b) The Managing Trustee shall be competent from time to time to frame, make and enforce all such rules, regulations, and bye-laws not inconsistent with the express provisions of this Trust as the Managing Trustee may deem proper for securing and facilitating the administration and management relating to the activities and affairs of the Trust.

c) The Managing Trustee shall have power in general to all acts necessary to carry out the objects of the Trust with the consent of the majority of the trustees.

d) The Managing Trustee shall have power to deposit the Trust money or any portion there of in any Nationalised Bank or Banks either by way of Fixed

V. Prabhu

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For M.R. EDUCATIONAL AND SOCIAL TRUST

Chairman

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Deposit or Current Account or Saving Bank Account and operate the same on behalf of the trust

e) To have control over the assets of the Trust and to execute, become party to, to sign, acknowledge, perfect and register all deeds, agreements, and writing and to give effectual discharge on behalf of the Trust.

f) To draw, make, accept, endorse, discount, negotiate, and execute, cheques, bills of exchange and other negotiable instruments.

6. CONSTITUTION OF THIS TRUST

a) The Trust shall be Irrevocable.

b) The Trust shall be governed by **BOARD OF TRUSTEES.** The Board of Trustees shall consist of all the trustees, the number of which shall always be not less than a two and not more than fifteen.

c) The Managing Trustee shall be **V. PRABU** for his life time.

d) The Board of Trustee is hereby authorized and empowered to nominate any other person as Trustees as long as the Trustees do not exceed fifteen in number.

e) The Trustees may at any time invite and receive, or without such invitation receive, any voluntary contribution(s) from AUTHOR or from any other person or persons, or organizations, by way of donations, legacy or otherwise. All such contribution shall be treated as forming part of the corpus of the Trust funds.

f) The Trustees shall be entitled to be reimbursed for all expenses incurred by them in carrying out the objects of the Trust.

g) The funds of the Trust will be invested strictly in accordance with the provisions of Section 11(5) read with section 13(1) (d) of the Income Tax Act.

h) The income and funds of the Trust will be solely utilized towards the objects and no portion of it will be utilized for the payment to Trustees by way of profit, interest, dividends, etc.

i) Any amendment to Trust Deed will be carried out only with the approval of the Commissioner of the Income Tax and not altering the basic character/objects of the Trust and further no such amendments which may prove to be repugnant to the provisions of Section 2(15), 11, 12 & 13 and 80-G of the Income-tax Act 1961 shall be made.

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For M.R. EDUCATIONAL AND SOCIAL TRUST

Chairman

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Deposit or Current Account or Saving Bank Account and operate the same on behalf of the trust

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j) The activities of the Trust shall be carried out only in India. No activity of the Trust will be carried outside India.

k) There is no movable or immovable-properties in this Trust

l) The Trust will not carry on any activity with the intention of earning profit

m) The benefit of the Trust are open to all irrespective of Caste, Religion, Sex etc..

7 POWER TO INVEST

a) The Trust shall invest the funds of Trust in Institutions in accordance with the provisions of Section 13(1) (d) read with Section 11(5) of the Income Tax Act as amended from time to time.

b) If in the opinion of the Board any property belonging to the Trust is deteriorating in value or is not yielding reasonable Income or that its sale or conversion into property of another kind would be advantageous to the Trust, the Board may exchange the same for property of another kind or sell the property and invest the proceeds in the manner as specified in the Income Tax Act, 1961.

c) For this purpose the trust shall be entitled to enter into any agreements and to raise funds by way of loans. The Trustees shall raise money by a way of loan from any nationalized / Private Bank or any other scheduled Bank of financial institutions or from any financial institutions by deposit of title deeds create necessary mortgage deeds.

d) It shall be lawful and competent for the Managing Trustee in his discretion to make donations from the Trust properties and/or send the money of the Trust in his discretion in any other manner to carry out the object of the Trust provided however that the Board of Trustees shall be informed of the same in the meeting held immediately there after.

e) The entire control, regulations, management, application and administration of the Trust properties whether capital or income, rent, interest or profit of any kind shall be at the discretion of the Trustees.

f) Every power, authority or discretion conferred upon the Trustees shall be exercised or signified either by some instrument in writing to be signed by all the Trustees or such of them as may be present there and vote at any meeting of the Trustee.

V. Prabhu

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For M.R. EDUCATIONAL AND SOCIAL TRUST

Chairman

8 MEETING OF THE BOARD

a) Meeting of the Board of Trustees shall be held at least once in a year but any number of other meetings may be held as and when considered necessary

b) A minute book shall be kept by the Trustees. All proceedings of all meetings of the Board of Trustees shall be entered in the Minute Book and shall be signed by the Chairman of the Meeting at the Conclusion thereof.

c) The Board is hereby authorized and may from time to time make additional rules and bye-laws regulating for carrying out the Trust, investment of Trust Funds and their utilizations thereof and all other matters incidental to the working of the Trust and from time to time modify, alter or amend such by-laws and rules provided that no such bye-laws shall be in any way alter or contrivance the objects of the Trust.

9. ACCOUNTS AND AUDIT

a) Proper and regular books of accounts of all receipts and expenditure of the Trust shall be maintained by the Trustees either in English or in Tamil.

b) On the 31st March every year a general account shall be taken for all the assets and liabilities of the Trust and an Income and Expenditure Account for the whole year and the Balance Sheet as on 31st March shall be prepared and shall be passed by the Board of Trustees. The accounts for the Trust shall be audited annually by a Chartered Accountant appointed by the Trustees for the purpose.

10. ADMINISTRATION

a) The Board shall have the full power of management of the Trust properties and funds and they shall have full control over the finance of the Trust. They shall likewise have full powers of supervision over the Charitable Institutions, Schools, Colleges, Hospitals and all the establishments falling with in the objects of the Trust.

b) Subject to the supervision of the Board and subject to the express provisions herein contained, the Managing Trustee shall have all and every power of Management, conduct and administration of the affairs of this Charitable Trust and its educational institutions, hostels, boarding houses, workshops, Hospitals and industry trade and other business establishment conducted by the Trust.

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For M.R. EDUCATIONAL AND SOCIAL TRUST

Chairman

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11. ANNUAL MEETING AND AUDIT REPORT

a) There shall be an annual meeting of the Board when the annual report of the Trust with an annual and audited statement of accounts shall be considered and adopted. The Managing Trustee shall at such meeting obtain approval by a resolution.

b) The Board shall consider at such meeting the Auditors Report and the Annual Report of the Trust and if the same is approved shall record such approval by a resolution.

c) Ten days notice is necessary for all meetings. The notice shall contain the agenda, place, date, and time of the meeting. The notice shall be sent through registered post, via the email and also posted on the website forum.

12. BANK ACCOUNT

The Managing Trustee is authorized to open current Account/Savings Bank Account or any other type of account in any Bank as deemed fit and the said bank account shall be operated by **V. PRABU** Managing Trustee of the Trust.

The **TRUST** shall borrow funds from the Nationalized Bank or Scheduled Bank, Financial institutions or private financiers for the purpose of the Trust and such borrowals shall be done by the Managing Trustee and it will be binding on the Trust provided the resolution copy signed by the majority of board of trustees to the effect is submitted along with the loan application.

Further all the Trustees are empowered to pledge, hypothecate the property of the both movable/immovable of the Trust, for securing the loan obtained from the Nationalized Bank Scheduled Bank, financial institutions or private financiers for the purpose of the Trust provided the resolution copy signed by the majority of board of trustees to the effect is submitted along with the loan application.

V. Prabu

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13. WINDING UP AND DISSOULTION

Upon winding up or dissolution of the Trust, the assets remaining as on the date of dissolution shall under no circumstances be distributed among the Trustees of the Managing Committee but the same shall be transferred to another charitable Trust whose objects are similar to those of this Trust and which enjoys recognition under section 80-G of the Income Tax Act.

SCHEDULE

Cash Rs.10,000/- (Rupees Ten thousand only). There are no assets to the Trust moveable or immoveable other than the above Rs.10,000/-.

IN WITNESS WHEREOF THE AUTHOR OF THE TRUST HAS SET HIS HANDS HEREUNTO THIS DAY, MONTH AND YEAR ABOVE WRITTEN AT CHENNAI.

(FOUNDER)

WITNESS:

1. V. KARIKALAN
S/o. N. Vaithilingam
T.64, A. Valluvar St. Chennai-83
2. N. P (N. PURUSHOTHAMAN)
S/o. R. Nagarajan
J-1, Gnanaolli St, Jaferkhanpet,
Chennai- 600 083.

Drafted by:
R. RAJARATHINAM, B.Sc.,F.C.A.
CHARTERED ACCOUNTANT
G4A, Meenakshi Flats, 25, Manner Street,
T. Nagar, Chennai-600 017.
Membership No.020610

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167/2015/BK4

Presented in the Office of SUB REGISTRAR of Ashok Nagar and fee of Rs. 295 paid between hours of 12 and 1 on 20/08/2015 by

1 Left Thumb

Additions As per the recitals of the document

8754392406

Execution Admitted by

1 Left Thumb

Additions As per the recitals of the document

Identified by

1 Name : 1 V. Karikalan S/o N. Vaithilingam 164-A, Valluvar St. Ch. 83

2 Name : 2 N. Purushothaman S/o R. Nageswaran, 1-1, Ground Flr, Jafer Khan Pet, Ch-83.

20th day of August 2015

SUB REGISTRAR
Ashok Nagar

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Endorsement Sheet no. 1 of 2

Registered as No 167 of 2015 of Book IV

Date : 20/08/2015

SUB REGISTRAR
Ashok Nagar
SUB REGISTRAR
Ashok Nagar

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Endorsement Sheet no. 2 of 2

आयकर विभाग
INCOME TAX DEPARTMENT

भारत सरकार
GOVT. OF INDIA

V PRABU

VAITHILINGAM

13/05/1985

Permanent Account Number
AXFPR0237J

Signature

V. Prabu

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